

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/01/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2300516

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: HYPERCONSTRUCT CO.,
ET AL

vs.

DEFENDANT: SHAW WALTERS

NATURE OF PROCEEDINGS: MOTION – COMPEL

RULING

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/01/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005468

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: MICAELLA CRISTINA
CAPELLI

vs.

DEFENDANT: MARIN HEALTH, ET AL

NATURE OF PROCEEDINGS: 1) DEMURRER
2) DEMURRER – TO PLAINTIFF’S FIRST AMENDED COMPLAINT FOR DAMAGES

RULING

Defendants Marin General Hospital’s (“Marin Health”) and Sonoma Valley Hospital Foundation’s (“SVH”; together with Marin Health, “Defendants”) demurrers are SUSTAINED with leave to amend as to Plaintiff Micaella Cristina Capelli’s (“Plaintiff”) First (medical malpractice), Third (negligent infliction of emotional distress, “NIED”), and Fourth (intentional infliction of emotional distress, “IIED”) Causes of Action. (Code Civ. Proc., § 430.10, subd. (e); see *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135 [as modified].)

BACKGROUND

This is a medical malpractice action. Plaintiff alleges that she is a resident of Italy and visited the Bay Area on business in September 2024. (FAC, ¶ 3.) During her trip, she began to experience concerning symptoms she alleges are consistent with venous thromboembolism. (*Id.* at ¶ 9.) She sought urgent medical care at Marin Health’s facility. (*Id.* at ¶ 10.) She alleges that despite reporting “redflag [sic] indicators,” she was given a “ cursory assessment.” (*Id.* at ¶ 11.) According to the FAC, Marin Health’s physician ordered Plaintiff an ultrasound, which came back negative. The physician “did not appreciate that a negative or inconclusive ultrasound does not rule out evolving or proximal DVT, particularly in a symptomatic patient.” (*Ibid.*) Plaintiff was discharged with instructions to take pain medication and elevate her leg. (*Id.* at ¶ 12.) She was not given anticoagulants, specialist consultation, or further imaging, nor was she warned of the signs of pulmonary embolism. (*Ibid.*)

When Plaintiff’s condition worsened, she sought medical care again, this time at SVH’s emergency department. (*Id.* at ¶ 13.) She alleges that she reported “worsening unilateral leg swelling, pain, and functional impairment.” (*Id.* at ¶ 14.) SVH personnel ordered her a CT scan, but it was “not completed due to equipment limitations and operational failures within the hospital.” (*Ibid.*) Instead of transferring Plaintiff to a facility “with functioning imaging